Kamaljeet Singh vs State Of Nct Of Delhi on 28 March, 2024

Author: Swarana Kanta Sharma

Bench: Swarana Kanta Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1040/2024 & CRL.M.A. 9141/20
KAMALJEET SINGH
Through:

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STATE OF NCT OF DELHI
Through: Mr. Manoj Pant, A
CORAM:
HON'BLE MS. JUSTICE SWARANA KANTA SHARMA
OR

% 28.03.2024

1. The instant application has been filed under Section 438 of the Code of Criminal Procedure, 1973 ('Cr.P.C.') on behalf of the applicant seeking grant of anticipatory bail in case arising out of FIR bearing No. 140/2024 registered at Police Station, Kirti Nagar, Delhi for offences punishable under Sections 420/468/471/120B of Indian Penal Code, 1860 ('IPC').

2. Briefly stated, it is the case of the prosecution that a complaint was received from the complainant alleging that the complainant had entered into an agreement to sell with accused persons namely Ms. 'X'/accused no.1for the property bearing NO. UGF, F-213/A2 Mansarovar Garden, Delhi. It has been alleged by the complainant that the said property had been sold to her with forged and fabricated documents with the support of present applicant/accused (i.e., brother in law of accused no.1) and the son of accused no. 1 i.e., accused no.3 herein. It is further alleged that when the This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 02/04/2024 at 22:09:16 complainant had paid the desired consideration she had asked accused no. 1 to get the sale deed registered. However, it is further alleged that accused No. 1 and 3 had said they had lost a few documents and as a result, were struggling to get the sale deed registered and needed some time. In the meanwhile, the complainant had given the said property on rent to one lady. It is also alleged that on various occasions, the complainant had requested to get the sale deed registered whereas accused No. 1 and 3 had kept making excuses on one pretext or another. It is specifically alleged that on 22.07.2023, when the complainant's son and husband had gone to the above- mentioned

property in dispute and had called accused no. 2 i.e., the applicant herein, he had stated, that they should leave immediately or else get ready for dire consequences as he had links with Khalistani's and he had further revealed that the property which had been given to the complainant was already on mortgage with Karvy Finance Ltd. Furthermore, the complainant's representatives had been shocked hearing all of this, and when they had inquired from neighbourhood, residents had informed them that accused no.1herein is a big fraud lady and her brother-in-law and son are also equally crook's. It is further alleged that the said fact had been concealed by the accused persons in order to commit fraud upon the complainant. It further alleged that it had also been revealed that, that accused no. 1 herein had registered a mortgage deed with Hinduja Housing Finance Ltd. and accused no. 2/present applicant had also taken a loan from Shriram finance with co-borrower Ms. 'Y' and that accused no.1 and 2 had taken a loan from Karvy Finance Ltd. Pursuant to the above mentioned facts, the present FIR had been registered.

3. Learned Counsel for the applicant/accused submits that the This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 02/04/2024 at 22:09:16 applicant/accused had never made any deal with the complainant and that the applicant is being falsely implicated in the case just for ulterior motive of the complainant herein as he just wants to grab the second floor of the property in dispute. It is further argues that the complainant was dealing with accused no.1 herein and her son i.e., accused no.3., they had entered into an agreement to sell for the sale of upper ground floor of the property in dispute. Furthermore, the complainant before registration of the present FIR had filed a civil suit bearing no. 1026/2023 against accused no.1 herein, meaning thereby that present case has been given a criminal colour whereas the dispute is purely civil in nature. It is further contended by learned counsel for the applicant/accused that the present applicant is ready to join investigation and fully cooperate with the investigation subject to any stringent conditions imposed by this Court. Therefore, it is prayed that the present applicant/accused be enlarged on anticipatory bail.

4. Per Contra, Learned APP for the State opposes the present anticipatory bail application and argues that the allegations levelled against the present applicant/accused are specific and serious in nature. It is further contended that the applicant/accused along with other co-accused persons has fraudulently with the help of false and fabricated documents cheated the complainant herein. It is further submitted that the property in dispute was already mortgaged with Karvy, Shri Ram Finance and Hinduja Finance. It is further argued that the applicant/accused has not joined investigation and that to unearth the entire conspiracy and money trial custodial interrogation of the present applicant/accused is required. Therefore, the present anticipatory application be dismissed.

5. This Court has heard arguments on behalf of both the parties and has This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 02/04/2024 at 22:09:16 gone through the material placed on record.

6. As per the case of the prosecution, the applicant/accused is allegedly accused of involvement in the forgery and fabrication of property documents related to property bearing No. UGF, F-213/A2, Mansarovar Garden, Delhi. Moreover, on 22.07.2023 the present applicant/accused had threatened the son of the complainant of dire consequences as the present applicant/accused was allegedly in connection with many Khalistani's and had further revealed that the said property was already mortgaged from a financial cooperation and that the present applicant/accused along with the co-accused persons had sold the property to the complainant with forged and fabricated documents. During the course of investigation, it has been revealed that the aforesaid property had already been mortgaged for an amount Rs. 2.5 Crores with Karvy Finance Ltd, but the present applicant/accused, along with other co-accused, have allegedly sold the property to the complainant/his mother without disclosing these facts. Moreover, it has been revealed that the accused persons have taken two loans for the said property in question. Additionally, further during the course of investigation the said property was found to have been sold by the co-accused persons, with the active involvement of the present applicant/accused, to one Sh. Vijay Kumar Jha.

7. This Court further notes that the investigating officer has served multiple notices to the present applicant/accused but he has failed to join investigation and has failed to cooperate in the investigation. The investigation is still in its early stages, many witnesses are yet to be examined and if the applicant/accused is released on bail he may threaten or influence the complainant as well as the witnesses. Thus, this court is not This is a digitally signed order.

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8. Accordingly, the present bail application stands dismissed. Pending application also stands disposed of.

9. It is however clarified that nothing expressed hereinabove shall amount to opinion expressed on merits of the case.

10. The order be uploaded on the website forthwith.

SWARANA KANTA SHARMA, J MARCH 28, 2024/at Click here to check corrigendum, if any This is a digitally signed order.

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